



THE POLICE COMMISSIONER
CITY OF NEW YORK

**MEMORANDUM IN SUPPORT OF NYPD'S DEVIATION FROM
THE DISCIPLINARY SYSTEM PENALTY GUIDELINES**

Re: PODS Case No. C-032170 regarding Police Officer Jonhattan Rodriguez-Ramos,
Tax No. 968103

Date: March 19, 2026

This disciplinary matter was investigated by the Civilian Complaint Review Board ("CCRB") which involved allegations that Police Officer Rodriguez-Ramos was discourteous, used offensive language towards an individual, and failed to provide his name, shield number, and business card to the individual. CCRB has determined that a downward deviation from the Disciplinary System Penalty Guidelines is warranted.

I concur with the downward deviation for the reasons articulated by CCRB in the attached correspondence.

Therefore, the Charges and Specifications in this matter will be dismissed and Police Officer Rodriguez-Ramos will receive Training, as negotiated by CCRB.


Jessica S. Tisch
Police Commissioner



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
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MOHAMMAD KHALID
INTERIM CHAIR

May 29, 2025

The Honorable Jessica Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. Police Officer Jonhattan Rodriguez-Ramos
(Tax Reg #968103, CCRB #202306570)

Commissioner Tisch:

A negotiated settlement for Training was agreed upon and signed by all parties on April 7, 2025. Assistant Deputy Commissioner - Vanessa Faciolince, endorsed the negotiated settlement on May 29, 2025.

On June 20, 2023, at approximately 8:24 p.m., [REDACTED] is arrested outside 160 Madison Street in Manhattan for having an outstanding arrest warrant. At the PSA 4 stationhouse, in the holding cell, Ms. [REDACTED], without being prompted to do so, removed all her clothing, exposing herself. An unidentified officer had Ms. [REDACTED] removed to the hospital for an evaluation.

En route to the Bellevue Hospital Center, at approximately 11:35 p.m., Ms. [REDACTED] asked Police Officer Jonhattan Rodriguez-Ramos for his name, shield number, and business card. BWC footage from Officer Rodriguez-Ramos captures Ms. [REDACTED] asking Rodriguez-Ramos for his name while he is speaking on the radio at 02:32. At 03:41, Ms. [REDACTED] says to Officer Rodriguez-Ramos, "All I want is your badge number and your motherfucking name – and a card." At 03:48, Officer Rodriguez-Ramos says, "You're under arrest. You don't have to talk to me, and I don't have to hear what you have to say." Officer Rodriguez-Ramos does not provide the requested information to Ms. [REDACTED] in the remainder of the footage. Under the parameters of NYPD Administrative Guide 304-11 and NYC Administrative Code Section 14-174, Officer Rodriguez-Ramos was required to provide his name, shield number, and business card to Ms. [REDACTED].

On June 21, 2023, at approximately 1:35 a.m., Officer Rodriguez-Ramos escorted Ms. [REDACTED] to a marked police vehicle for transport back to the PSA 4 stationhouse. BWC footage from Officer Rodriguez-Ramos captures Officer Rodriguez-Ramos securing Ms. [REDACTED] in the rear of a marked vehicle. At 03:40, Ms. [REDACTED] states, "You huggin' me and shit!" Officer Rodriguez-Ramos says that he is putting a seatbelt on her. Ms. [REDACTED] says, "I don't give a fuck! You stink!" At 03:43, Officer Rodriguez-Ramos replies, "No, you stink." At 05:40, Ms. [REDACTED] tells Officer Rodriguez-Ramos that he needs medication. At 05:44, Officer Rodriguez-Ramos says, "You sure I'm the one that needs medication?"

Officer Rodriguez-Ramos, captured in BWC footage, tells Ms. [REDACTED] that she stinks after she commented on his body odor. Officer Rodriguez-Ramos made a discourteous remark about Ms. [REDACTED]'s body odor during a situation that was neither stressful nor chaotic and served no valid law enforcement purpose. Furthermore, when Ms. [REDACTED] tells Officer Rodriguez-Ramos that he needs medication, Officer Rodriguez-Ramos makes a comment implying that Ms. [REDACTED] requires psychiatric medication. Officer Rodriguez-Ramos made a discourteous remark about Ms. [REDACTED]'s perceived mental health, which is prohibited under NYPD Administrative Guide 304-06.

NYPD disciplinary guidelines indicate that for Offensive Language, the mitigated penalty is the forfeiture of one (1) vacation day, the presumptive penalty is the forfeiture of twenty (20) vacation days, and the aggravated penalty is termination.

The negotiated settlement deviates from NYPD disciplinary guidelines for the charge of Offensive Language for the following reasons:

Officer Rodriguez-Ramos has been an officer for five years. He has no discipline history and has accepted responsibility in this matter. For these reasons, the CCRB deems it appropriate to deviate from the Matrix and recommends Training.

Respectfully submitted,
ABaxter

Ashley Baxter, Esq.
APU Prosecutor
Civilian Complaint Review Board
Administrative Prosecution Unit

Cc: John Tynan, Esq.